



MGT513

BS Public Administration (Virtual University of Pakistan)



Scan to open on Studocu

## MGT513 - Topic 001

### Approaches to the study of Public Administration

#### Meaning & Definition

Administration is a **Latin word** mean “**to look after or care for people**”. According to this definition almost every human activity involves administration.

**Pfiffner and Presthus**

“Organization and direction of human and material resources to achieve desired ends”

**Luther Gulick**

“Administration has to do with getting things done; with the accomplishment of defined objectives”.

## MGT513\_Topic 002

### Scope and Significance

#### Scope

Hardly any aspect of life that does not come in contact with government

**Two Things :**

**1.) Complexity** . Today life is complex:

- ❖ Size of population(43 million)
- ❖ Improvement in quality of life
- ❖ Technology
- ❖ Shrunk globe

**2.) Nature of Responsibility has been changed**

**Q:** Are government activities confined to just administering (executing)?

**View # 1:** all activities, from justice to provision of basic services

**View # 2:** only execution of the policy, so policy formulation is separated from implementation

Which view do you support and why?

#### Significance Of Government

**An instrument of governance:** security and maintain peace and order

**An instrument of development and change:** need trained human resource for building infrastructure

Economic Development \_ Human Development Index \_ Health services, clean water and etc..

Change \_ Mean Providing Birth Certificates, NIC etc..

**An instrument of welfare of people:** provide basic services

### **MGT513\_topic 003**

#### **Scope and Significance-**

##### **Examples : What activities?**

Construction of dams for storing of water for electricity and agricultural use.  
Elementary education  
Laws and security  
Health facilities  
Speedy justice  
Provision of utilities i.e Electricity , Gas, Tel. or Road Communication  
Funding research and development in country  
Attention to the protestants demands  
Security of life ,honour and property of citizens.

### **MGT513\_topic 004**

#### **Four perspectives of Public Administration**

Public administration is a multidisciplinary subject, involving **people**, their **behaviour**, **resources** etc.. therefore it can be viewed:

- 1. Managerial**
- 2. Political**
- 3. Legal**
- 4. Fiscal**

##### **Managerial**

##### **General characteristics:**

- 1.** A little distinction between public and private sector
- 2.** Merit based recruitment
- 3.** Apolitical
- 4.** Organizational structure to give efficient output emphasizes scientific method of work improvement

##### **Criticism on Managerial**

- 1.** Dehumanization of Bureaucracy . Humans are Cogs in a Machine
- 2.** Rationality

### **MGT513\_topic 005**

##### **Political**

##### **General characteristics**

- 1.** Public administrators give policy input, and participate in policy making
- 2.** Hard to measure goal achievement (effectiveness)

3. Too many stakeholders ( Business or Commercial Group, Non-governmental org. )
4. Muddling through in decision making

#### Criticism on political

1. Overlapping functions
2. Inefficiency
3. Lack of consensus

### MGT513\_topic 006

#### Legal

#### General characteristics

1. Government is run by law
2. Constitution, laws, ordinances provide contours of legal framework of government
3. Rights and duties equity
4. The law must have 'due process' . The Course or Process of Law must follow.

#### Criticism on Legal

Too much emphasis on rules, regulation etc.. losing sight of equity, fairness and administrative effectiveness

### MGT513\_topic 007

#### Four perspectives of Public Administration

#### Fiscal

#### General characteristics

1. Tax collection and expenditure . Direct : Income tax which is progressive and Indirect taxes which are Regressive

For me : **Q:** Difference b/w Regressive and Progressives Taxation.?

**Answer :** <https://chatgpt.com/share/674831db-5dd8-800d-b8b3-ff41cbf39c49>

2. Effect on economy

#### Criticism on Fiscal

Too much government in economy

### MGT513\_topic 008

#### Responsibilities of the government

Government has **Three main responsibilities**

1. Government as provider
2. Government as regulator

### 3. Government as facilitator

#### Government as Provider

Provision of legal framework within which all social and economic activities occur.

Provision is of Security ensuring absence from all threats

Provision of clean environment

Secure citizens from internal and external threats

### MGT513\_topic 009

#### Government as Regulator

#### **Government regulation/oversight:**

Means a law or rule framed by government for bringing in actions of private/public bodies in accordance with the law, which serves citizens social, political and economic threats

In a free-economy businesses do not want to be regulated like:

- Private schools
- Private hospitals
- Private television channels
- Pharmaceutical companies

Why?

Regulatory bodies:

- Pakistan electronic media regulatory authority ordinance 2002, Rules 2009
- Public procurement regulatory authority
- National electric power regulatory authority
- Drug regulatory authority
- Many other laws that regulate the functioning of private organizations
- ✚ Financial Regulatory Authorities of Pakistan
  - [Competition Commission of Pakistan](#)
  - [Planning Commission \(Pakistan\)](#)
  - [Securities and Exchange Commission of Pakistan](#)
  - [State Bank of Pakistan](#)
- ✚ [Central Board of Film Censors](#)
- ✚ [Drug Regulatory Authority of Pakistan](#)
- ✚ [Earthquake Reconstruction & Rehabilitation Authority](#)
- ✚ [Election Commission of Pakistan](#)
- ✚ [National Counter Terrorism Authority](#)
- ✚ [National Database and Registration Authority](#)

- ✦ [National Electric Power Regulatory Authority](#)
- ✦ [National Highways Authority of Pakistan](#)
- ✦ [Oil & Gas Regulatory Authority](#)
- ✦ [Pakistan Civil Aviation Authority](#)
- ✦ [Pakistan Electronic Media Regulatory Authority](#)
- ✦ [Pakistan Environmental Protection Agency](#)
- ✦ [Pakistan Halal Authority](#)
- ✦ [Pakistan Medical and Dental Council](#)
- ✦ [Pakistan Nuclear Regulatory Authority](#)
- ✦ [Pakistan Standards & Quality Control Authority](#)
- ✦ [Pakistan Telecommunication Authority](#)
- ✦ [Public Procurement Regulatory Authority](#)
- ✦ [Public-Private Partnership Authority \(Pakistan\)](#)
- ✦ [Water and Power Development Authority](#)

### PAKISTAN REGULATORY AUTHORITIES

A regulatory authority is an autonomous enforcing body created by the government to oversee and enforce regulations regarding occupational health and safety. The role of the regulatory authority is to establish and strengthen safety standards and ensure consistent compliance with them.

There are 18 regulatory authorities in Pakistan. these includes:

1. The State Bank of Pakistan,
2. The Securities and Exchange Commission of Pakistan,
3. The Competition Commission of Pakistan,
4. The Pakistan Electronic Media Regulatory Authority,
5. The National Electric Power Regulatory Authority
6. The Oil and Gas Regulatory Authority
7. The Drug Regulatory Authority
8. The Civil Aviation Authority
9. The Pakistan Nuclear Regulatory Authority
10. The Pakistan Standards and Quality Control Authority
11. The Public Procurement Regulatory Authority
12. The Private Education Regulatory Authority
13. The Pakistan Medical and Dental Council
14. The Pakistan Engineering Council,
15. The Pakistan Nursing Council
16. The Pakistan Tibb Council
17. The Pakistan Veterinary Medical Council
18. The Pakistan Environmental Protection Agency.

Besides, there are prime regulators such as Election Commission of Pakistan (ECP), NAB, FBR and other

## **MGT513\_topic 010**

### **Government as Facilitator**

- Regulation and facilitation can become two opposing roles because facilitation means enabling ease of doing social and economic activity  
For example:  
Setting up a private school
  - According to the law school must have proper building, safe playing area, teachers should be qualified to teach and so on
  - If the owner does not fulfill the conditions should not be allowed to set up school.
  - But if all the conditions are met the school should be set up in due process (in all fairness) without trouble to the owner.
- Government's facilitative role is a two-way process. The citizens have to abide by the law and the government has to ease the process of acquiring services.

## **MGT513\_topic 011**

### **Origin of Public Administration**

#### **Theory**

- The theory and practice of public administration originates in USA, in the late 19<sup>th</sup> century.
- The causes of the development of the thought was that the system was dominated by 'spoils system'
- Inefficiency, corruption and incompetence were, therefore, common in USA
- In this situation, the reformers created a movement to introduce changes in the political system
- This movement was influenced by Frederick Taylor's 'Scientific Management'
- The Reformers urged for a more interventionist state, the separation of politics and administration, the merit principle (tenured, neutral, and competent administrators), and sound financial management.
- The Reformers were successful in creating a career civil service (Pendleton Act, 1883), line-item budgets, and less political partisanship and corruption

## **MGT513\_topic 012**

### **Origin of Public Administration (Theory)**

#### **Theory**

- The Reformers built on the theory of organization. The theory espoused following principles:

- The principle of division of work and specialization.
- The principle of homogeneity.
- The principle of unity of command.
- The principle of hierarchy with respect to the delegation of authority.
- The principle of accountability.
- The principle of span of control.
- The staff principle (Gulick, 1937; Urwick, 1937; Mooney, 1937; Graicunas, 1937).
- The government activities increased, it regulated more. The theory evolved and scientific principles were applied to almost all public administration activities.
- These thoughts lasted till the end of 1960s and the field of public administration included classical (Herbert Simon) , neo classical and political oriented thoughts.

### MGT513\_topic 013

#### Origin of Public Administration

##### (Practice)

##### Practice

- The practice of public administration has stimulated academia to study scientifically individual behavior, political and institutional side of organizations
- The gap between theory exists?
- The question has been that how organizations can harness human activity in most beneficial way, both to individual and organization
- The organizations in practice are arranged in traditional way, but influence of theory exists by way of adoption of recommendations of theory, research findings, and cultural biases

[Click here to view PPTs](#)

### MGT513\_topic 014

#### Origin of Public

##### Administration

##### Examples

#### Government of Pakistan

حکومت پاکستان



State emblem of Pakistan

|                               |                                                         |
|-------------------------------|---------------------------------------------------------|
| Type                          | Federal government                                      |
| Formation                     | 14 August 1947; 77 years ago                            |
| Current constitution          | 1973 Pakistani Constitution                             |
| Country                       | <span><span></span></span> Islamic Republic of Pakistan |
| Seat of government            | Islamabad                                               |
| Official languages            | English · Urdu                                          |
| Website                       | <a href="#">Official Website</a>                        |
| <b>Legislative branch</b>     |                                                         |
| Legislature                   | Parliament                                              |
| Upper house                   | Senate                                                  |
| Upper House Presiding officer | Chairman of the Senate                                  |
| Lower house                   | National Assembly                                       |
| Lower House Presiding officer | Speaker of the National Assembly                        |
| Meeting place                 | Parliament House                                        |
| <b>Executive branch</b>       |                                                         |
| Head of state                 | President of Pakistan                                   |
| Head of government            | Prime Minister of Pakistan                              |
| Principal organ               | Cabinet                                                 |
| Meeting place                 | Cabinet Secretariat                                     |
| Ministries                    | varies                                                  |
| Responsible to                | Parliament                                              |
| <b>Judicial branch</b>        |                                                         |
| Court                         | Supreme Court of Pakistan                               |
| Chief judge                   | Chief Justice of Pakistan                               |

- No separation of politics from administration
- Favoritism and corruption still prevalent
- Financial irregularities persist

[Click here to view PPTs](#)

## **MGT513\_topic 015**

### **Approaches to New Public Management**

#### **Classical**

- Max Weber, Taylor and Woodrow Wilson dominated public administration thought during late 19<sup>th</sup> and early 20<sup>th</sup> century.
- Weber's theory of bureaucracy is the most important theoretical principle of classical model of public administration
- Weber's bureaucracy is characterized by, hierarchical structure, permanent civil bureaucracy which is neutral apolitical, only implementing policy.
- This model has been accepted in Continental Europe and USA
- The key feature of this model is that in modern government system professional bureaucrats execute public policy while separated from political mechanism
- It was departure from being loyal to king or minister or any party and thus the neutrality and merit of civil servants instead of political dependence
- Refer to topic 1 a for further detail

## **MGT513\_topic 016**

### **Approaches to New Public Management**

#### **Modern Managerial Approach**

- The classical system persisted for a long time and was successful in many ways.
- It administered many social and economic programs, economic infrastructure like constructing power houses, highways, railways etc.
- The wave of rethinking in government started in USA in 1980s and 1990.
- Unlike European continent, USA with established corporations, was one on the initial countries to rethink government
- The rethinking in government was given the name "New Public Management" (NPM)
- Other names were, 'managerialism', 'market-based public administration', 'post-bureaucratic paradigm', 'entrepreneurial government'

[Click here to view PPTs](#)

## **MGT513\_topic 017**

### **Approaches to New Public Management**

#### **Modern Managerial Approach**

- The citizens were called 'customers' or 'clients'

#### **Critique**

- What are the strengths and weaknesses of the two approaches?
- The Weberian classical approach emphasis the importance of structure and rules and regulations
- What are the strengths and weaknesses of the two approaches?
- The Weberian classical approach emphasis the importance of structure and rules and regulations
- The modern Approach attempts to reduce red-tape in government and be more like private corporation.
- Creating professional culture of quality service so that bureaucrats become expert in the law relevant to his or her sphere of activity, but also a professional manager
- Is New Public Management really new?

[Click here to view PPTs](#)

## **MGT513\_topic 018**

### **Why Transition**

#### **Background**

- Increasing complexity of public organizations, caused by generations of reforms
- Dregs of reforms
- Not only what the reforms do with the organization but also what the organizations do with the reforms

#### **What is NPM?**

##### **Efficiency orientation**

- The hybrid character of NPM
  - Economic organization theory
  - Centralization Contractualism
  - Agencification
  - Managerialism
  - Decentralization

#### **Key elements of NPM**

- Performance management (incentives)
- From ex ante control to ex post control
- Deregulation, liberalization

- Single-purpose organizations
- Separation of policy and operations
- Managerial autonomy
- Contract, privatization, market-orientation
- Customer choice

[Click here to view PPTs](#)

## **MGT513\_topic 019**

### **Why Transition**

#### **NPM in public sector**

- Serious budget problems in public sector
- Productivity and quality of public service declined
- **Managerialism** was introduced which forced bureaucracy to be more responsive to needs of 'customers (Citizens) '

#### **What is managerialism?**

- [Reengineering](#): to rethink about the internal processes of providing services
- [Entrepreneurialism](#): Managers to be leaders and should give vision to organization
- [Empowerment](#): managers can become powerful by giving power, that is, by [decentralizing](#). Give incentives to them of their work.

[Click here to view PPTs](#)

## **MGT513\_topic 020**

### **Why Transition**

#### **Mix of private-public sector**

- Concepts of private sector like 'client' or 'customer' were applied to public sector
- Decentralization concept
- Agency concept
- Tax collection (Some units themselves generate revenue and spend or collect it and make budget)

[Click here to view PPTs](#)

## **MGT513\_topic 021**

### **Why Transition**

#### **Critique of NPM.**

- New Public Management could not deliver
  - structural devolution weakened political control, problems of fragmentation, capacity and coordination
  - There is no proof if efficiency of services has improved

- Concern about the quality of public services and increasing social inequality
  - NPM treats individuals as "customers" or "clients" and not as citizens. They are thus treated as economic unit
  - The theory is dominated by market concepts, copying business management and public choice theory
- [Click here to view PPTs](#)

## MGT513\_topic 022

### Changing Practices and Needs

#### Changes in NPM

- NPM is almost three decades old
- Based on **three concepts**: **disaggregation** (autonomous units), **competition** and **incentivization**, its effects are reverberating in countries new to NPM
- It has not increased government effectiveness
- In developed countries the NPM has reversed and is co-existing with new reforms

#### What has been success in NPM?

- Performance measurement
- Partly competition
- And some aspects of incentivization
- But Agencification, decoupling (detaching) policy from operation were the weak areas
- Not able to solve social problems. Ignore the welfare concept
- So, what is new replacement to NPM?
- There will be some continuity of NPM, things that have worked better
- The current reforms move around information technology and information system

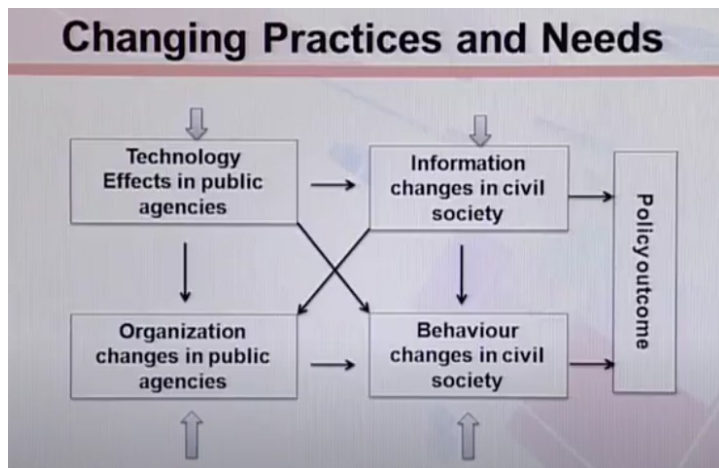
[Click here to view PPTs](#)

## MGT513\_topic 023

### Changing Practices and Needs

- IT system have significant bearing on public administration, the first being automated data processing replacing large number of clerical (and operational) staff.(It can store large number of data).
- Office automation: dictation, typing, filing, telephone and telephone switchboard operation
- This change is called **digital-era governance (DEG)**

- It has prompted change wherein: switchover to email in internal and external communication, websites, intranets in organizational information



- Electronic procurement system, from paper to electronic record keeping
- Modes of informing consumer and involving them

**Three areas are important to understand DEG:**

- Reintegration: (reaction

against NPM) To make best use of digital-era technology the disaggregated functions can be brought together.

- Re-governmentalization of disparate activities
- Citizen-based, services based or need based foundation of organization
- Digitization processes: Web, internet, and e-mail etc. are exaggerated to bring in efficiency. Critical to it is the change in organizational culture and behavior

[Click here to view PPTS](#)

## MGT513\_topic 024

### Mughal Period

#### Mansabdari system (More than 300 years)

- It was a Mughal system of administration, which had Turkish and Ghenghezi influence on its structure
- Mansabdars were civil servants of Mughal Empire (governing class)
- According to one view Mughal Empire was not despotic (autocratic) or irresponsible and all-powerful autocracy
- They had to deal with Turks, Afghan and locals
- They, like all rulers depended on their civil servants
- Akbar ruled for almost 50 years (1556-1605), converted a loosely knit rulers, into a powerful center ruled by a well-structured bureaucracy
- Some form of this bureaucracy existed up to 1948 in Hyderabad Deccan, India (Spear, 1970 in Leach and Mukherjee).

[Click here to view PPTs](#)

## MGT513\_topic 025

## Mughal Period

### Mansabdari system

- Structure: Based to raise an army during battle, but during peace time they would serve as executive. آئین اکبری
- It had 66 grades as given in the book. In practice there were 33 grades. These were from Commander of ten to Commander of ten thousand.
- The highest rank was *Panj Hazari*, and only the royal sons held this rank
- *Panj hazari* (A mansabdar with a zat rank for his mansab of 5,000 was called a *Panj Hazari*) or any other number of ranks was a title like colonel or deputy commissioner
- Besides the personal rank of Mansabdar called *zat*, there was second rank of *sawar* or horseman.
- The *sawar* rank was a rank within a rank and it meant the number of horsemen to be provided during battle
- A *sawar* rank of 3000 would produce 600 horsemen
- **Example:** A mansabdar with a *zat* rank of 4000, a *sawar* rank (within mansab rank) of 3000 actually would maintain 600 horsemen, that is, 1/5
- **Example:** a mansabdar with 1000 horsemen would provide 300 horsemen with 3 horses each, 600 with 2 horses each and 100 with one horse each making 2200 horses.
- Murad Khan, yak hazar (1000) zat, shish sad (600) sawar, du aspah
- Descriptive rolls of horses were maintained
- The horse, camels, elephants, bullock carts were the means of transportation.
- These were also selected and horses were branded for their pedigree  
[Click here to view PPTs](#)

## MGT513\_topic 026

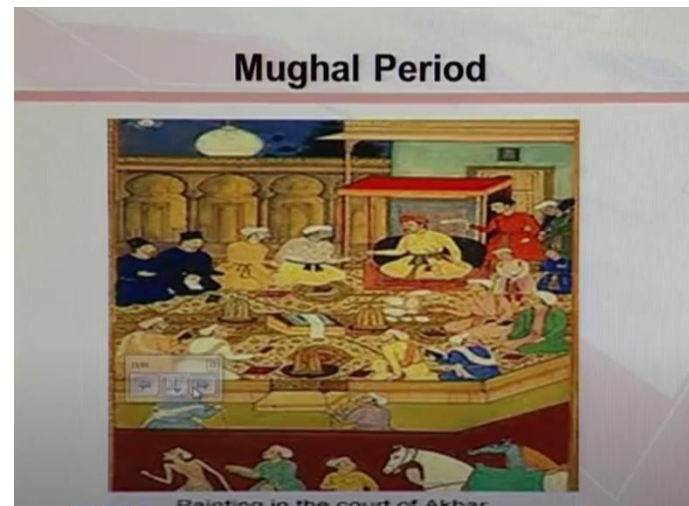
### Mughal Period

#### Mansabdari system

##### Recruitment:

- Young men from abroad would present themselves in the imperial court and catch the eyes of emperor.

- The emperor took great care in selection of mansabdar. It was based on merit and comprised of Afghans, Turks, Persians, Muslims and Hindus.
  - He would first be recruited as personal troop and if he proved his worth, he would be given a 'mansab' of ten straight away.
  - Heredity influence existed but was minimal.
  - The titles were given to aristocracy to reduce the differences in races with a discipline of bureaucratic system
  - Personal loyalty to the emperor though was very important, but talent was not ignored.
  - The service gave pride and position in society
  - The men who came to service were ambitious. They bowed in humility to their ambitions, and associated themselves to powerful emperor
- [Click here to view PPTs](#)



## **MGT513\_topic 027**

### **Mughal Period**

#### **Mansabdari system**

#### **Salary and jagirs:**

- Mansabdars were given salary according to their mansab and an allowance to maintain horses and horsemen. Their salaries in fact comprise a kind of monthly budget
- Land was the most important resource. It was assigned as:
  1. Jagirs to nobles, amirs and Mansabdars as salary to maintain themselves and the horsemen, horses, bullock cart etc.
  2. Khalisa land: its income went to royal exchequer and
  3. Inaam: gift to religious and other scholars
- The salaries could vary, because a Mansabdars may be paid for 12, 9 or 6 months
- And it depended on the assignments. If assignments were reduced so were the salary

#### **Functions:**

- The functions of Mansabdars covered whole range of government except judicial.
- They were advisors or privy councilors, wazirs, governors (subedar), district officers (faujdar), revenue collectors, they commanded armies and forts

[Click here to view PPTs](#)

## MGT513\_topic 028

### Mughal Period

#### Critique

Cadre : لوگوں کا ایک چھوٹا گروپ جو خاص طور پر کسی خاص مقصد یا پیشے کے لیے تربیت یافتہ ہے

- It held the empire to gather for more than a century and then degenerated
- A cadred service degenerated to a system of title-giving without assignments
- They were sword and pen of the emperor
- It was a centralized system. Tight control by the Emperor.
- Decline in revenue led to ineffective monitoring
- It did not had *es spirit de corp*, no own persona who could exert collective influence
- Aging Emperor (Aurangzeb), rising war of succession
- Jagirs became private properties, first in Bengal, and were used to raise private armies
- Emperor became weak and loyalty declined
- Mansabdari system, according to Spear (1970) was a genuine elite system but of secondary type.

[Click here to view PPTs](#)

## MGT513\_topic 029

### Colonial Period

#### East India Company (EIC)

- The British arrived in India in 1583 to explore the possibility of trade in India
- EIC was founded as joint stock company in 1601. (1605 Akbar's Death)
- In 1640 the EIC opened its first office in Bombay.
- After the death of Akbar, the decline of the Mughal empire had set-in.
- The Company continued to seek concessions from Mughal
- Taking advantage of the situation sought permission to establish Forts and Factories

- In the guise of protecting their forts and factories raised armies.
- The Company started involving itself in local politics
- The last Mughal emperor's rule (Jahangir) lasted 22 years (1857-1857)
- His rule confined to the Red Fort
- He was dependent on the company for pension
- The company rule began after the battle of Plassey in 1757 and ended in 1857 with the Mughal period

[Click here to view PPTs](#)

## **MGT513\_topic 030**

### **Colonial Period**

#### **East India Company (EIC)**

- How did EIC rule?
- Structure: it comprised
  - 1) **court of proprietors** consisting shareholders EIC, who elected 24 court of directors.
  - 2) **Court of directors**, the 24 members, the work was carried out by 14 committees.
    - Some of the main committees were: India house committee, civil college, military college, etc. All appointments were made by the Directors.
    - The civil and military services were recruited from the graduate of civil and military college
  - 3) **Board of Commissioner** for Affairs of India or the Board of control. The Board comprise 6 departments, Accounts, Revenue, Judicial, Military, Secret and Political, and Foreign and Public.
- - The Board controlled all the territories of East Indies. (South Asia and South East Asia)
  - **India, for the purpose of administration was divided into 3 Presidencies:**
  - **1.** Fort William, Bengal; **2.** Fort St. George, Chennai (Madras); **3.** and Bombay castle.
  - Fort William, Bengal, was the seat of Governor (later made Governor General (GG)) who was appointed by Court of Directors, subject to the approval of the crown.
  - **EIC made major changes in the land revenue system in Bengal: Converted state landlordship to private property, achieving two goals, created landed aristocracy and improved the conditions of hapless farmers**

[Click here to view PPTs](#)

## MGT513\_topic 031

### Colonial Period

- The GG was assisted by Supreme Council, consisting 4 members, 3 of whom had 10 years stay in India. The fourth one did not belong to the company. The Commander in Chief of forces in India was ex-officio member of the council
- The GG was a despot in one sense. He could veto the decision of the council, he could appoint Residents to the native states, commissioners, Lieutenant Governor of Bengal, NWFP or any territory under the agreement.
- In 1853 the Supreme Council was expanded to 6 members, who could only vote for framing of laws and regulation

[Click here to view PPTs](#)

## MGT513\_topic 032

### Colonial Period

#### Covenanted and Uncovenanted

- The policies of EIC were implemented by Civil servants (covenanted and uncovenanted): Military, Navy and Ecclesiastical Services.
- Senior employees of the EIC signed agreement with the company on the terms of their service. The agreement was called 'covenant' and were called **Covenanted civil servants**.
- Those who did not sign agreement with EIC and were recruited were called '**Uncovenanted civil servants**'.
- Usually covenanted civil servants occupied higher position. Before the East India Act 1793, it was not exclusive that positions to be filled by covenanted civil servants
- But as the activities of the company expanded the number of covenanted civil servants could not keep pace and Uncovenanted civil also occupied higher positions.
- According to Kennedy (1987), the two terms are ambiguously used, there was one cadre covenanted and other services.

[Click here to view PPTs](#)

## MGT513\_topic 033

### Colonial Period

- After the East India Act 1793, came Report Aitcheson Commission 1883.
- The situation of the sub-continent in 1857 has to be kept in mind. It was believed by some that the cause of 'mutiny' was complacency and distancing with lower rank in the company.

- The EIC was dissolved by Government of India Act 1858 passed by British Parliament
- The British crown ruled India through its parliament
- Report of Aitcheson commission 1883
- But it kept the distinction between covenanted and Uncovenanted service
- In response to demand to indigenization of service in 1879, especially covenanted service
- The covenanted and uncovenanted distinction was to be removed
- A new service to be created, 'Imperial Civil Service' (later Indian Civil Service')
- Provincial civil service and Subordinate Civil service were recommended
- Linton Commission Report 1912 recommendation of further indigenization (recruiting of local civil servants).
- As result of the recommendation the civil service was reorganized and indigenize
- In 1887 top 1000 members of Imperial civil service were British,
- By 1947 there were 322 Indians and 688 British

[Click here to view PPTs](#)

## **MGT513\_topic 034**

### **Colonial Period**

#### **Recruitment:**

- The ICS were appointed under section xxxii of Government of India Act 32.
- There were 5 methods of recruitment,
  - 1) Open competitive examination in London,
  - 2) Separate exam in India,
  - 3) Through nomination to satisfy communal and provincial representation,
  - 4) Promotion from provincial services, and
  - 5) Appointment from bars
- **Age:** 19 to 23
- After indigenization locals were educated and trained on the pattern British
- First person who enter in Imperial civil service was a Bangali and recruited through first method.

[Click here to view PPTs](#)

## **MGT513\_topic 035**

## Colonial Period

### Critique

- The ICS was elite service like 'Mansabdars'. They were district officers, administrators, magistrates etc.
- They were ears and eyes of the British empire
- Unlike Mughal bureaucracy, they saw themselves as cadered group
- They had immense decision-making power
- Their power originated from legal rational authority (the Act of Parliament)
- They were generalists but had vast field experience
- They were in sub-continent with national interest and they served accordingly
- They were generally neutral in decision making
- They were, however, arrogant

[Click here to view PPTs](#)

## MGT513\_topic 036

### Post-Independence

#### 1947 to 1973

- After independence Pakistan was confronted with huge problem of worlds largest migration of population
- The settlement of refugees was the main focus of the Government of Pakistan
- Pakistan, therefore, maintained the cadre system inherited from the colonial period with slight modifications.
- The cadre system was the result of British to maintain control and respond to demand of nationalist for self-rule
- Other reasons to reform or restructure were:

- Not enough trained people (under representa
- Not enough resources
- Bureaucratic inertia
- Assured career prospects

[Click here to view PPTs](#)

**Bureaucratic inertia** is the supposed inevitable tendency of bureaucratic organizations to perpetuate the established procedures and modes, even if they are counterproductive and/or diametrically opposed to established organizational goals. This unchecked growth may continue independently of the organization's success or failure. Through bureaucratic inertia, organizations tend to take on a life of their own

## MGT513\_topic 037

### Post-Independence

#### 1947 to 1973

The service structure of central government at the time of independence had following cadres:

- a. All India Services (10 services)

- b. Central services Class 1 only (11 services)
- c. Central services Class I and II (7 services)
- d. Central Services Class II only (12 services) for example, Imperial Secretariat Stenographer service, Assistant Account & Audit Officer Service

All Pakistan service was equivalent to inherited British 'All India Service' under Secretary of State

**All Pakistan Service** were 1. Civil Service of Pakistan (CSP) and the 2. Police Service of Pakistan

- CSP was direct descendent of ICS
- Pakistan inherited few ICS officers
- By 1950, when encadred, many officer were admitted to CSP
- Prestige, rank, multifaceted career, similar to ICS
- **Central Services:**
  - 1. Pakistan Foreign Service
  - 2. Accounts Services
  - 3. Pakistan Custom and Excise Service
  - 4. Pakistan Taxation Service, etc
  - 5. In all 13 services
- We see that cadre system developed in colonial and post- colonial situation as a result of expediency.
- Accepted with minor modification
- Dominated by elite, CSP
- Both systems concentrated power in one elite cadre, i.e., CSP to perform judicial and executive functions.
- According to Kennedy (1987), institutional development sacrificed due to cadre system

[Click here to view PPTs](#)

## **MGT513\_topic 038**

### **Post-Independence**

#### **1973 Reforms**

##### **Why need for reform?**

- Corruption, inefficiency, poor service delivery, lack of accountability, weak performance appraisal
- Termination of cadre system and introduction of Occupational groups
- Use of title 'CSP' discontinued.
- Unified pay scale
- Scrapping of reservation of posts in the Centre for elite cadre

- Joint pre service training
  - Lateral entrant recruitment
  - Provision of vertical movement of other cadre
  - Service associations abolished
  - CSP was abolished but its new incarnation, District Management Group (DMG) retained some old features
  - Bifurcated in DMG and Tribal Area Group
  - Currently 13 occupational groups. Website of Federal Public Service Commission.
  - All Pakistan Service were renamed All Pakistan Unified Group
  - These were major reforms in the structure of government
  - It weakened the influence of elite cadre
  - The military government in 1979, did not reverse the reforms
  - There were small changes here and there
  - Example: army personnel induction in civil service, renaming of DMG as Pakistan Administrative Service (PAS)
- [Click here to view PPTs](#)

### **MGT513\_topic 039**

#### **Post-Independence**

##### **Devolution 2001 (Local Government Ordinance 2002)**

- Abolished the positions of Divisional Commissioner and Deputy Commissioner – replacement with District Coordination Officer (DCO) at District level
- Separation of Police and magisterial powers from district administration
- The office of deputy commissioner was abolished
- Indirectly elected District Nazim head of district
- The bureaucracy did not accept the change
- Many DMG officers left service and joined international organizations
- Loss of power and prestige
- Politician opposed it (2008)
- As a result, the reform was rolled back and the old system revived

[Click here to view PPTs](#)

### **MGT513\_topic 040**

#### **Post-Independence**

##### **Critique**

- Since independence, more than 49 reforms commissions have been formed

- 1973 reforms, 2001 reforms and little modifications have not improved service delivery as much
- Those in position to change **lack vision** and are bound by vested interest
- **Incompetency challenges** in government exhibited through not charging the violators of law
- **Technical personnel** like in health, economists, engineers, educationist, scientists have slow promotion prospects and **unattractive salary**
- Accountability and performance appraisal weak areas
- Rent seeking, lack of transparency, absence of rule of law

[Click here to view PPTs](#)

## MGT513\_topic 041

### Post-Independence

#### **New Public Management in Pakistan (1980) :**

The **sources** of NPM:

- Globalization
- ICT = Information and Communication Technology.
- International financial institutions : **Liberalization Reforms**

#### **Examples of NPM in Pakistan:**

- Privatization of state-owned enterprises, state cement corporation, Pakistan Telecommunication, banks etc.
- Unbundling of WAPDA

[Click here to view PPTs](#)

## MGT513\_topic 042

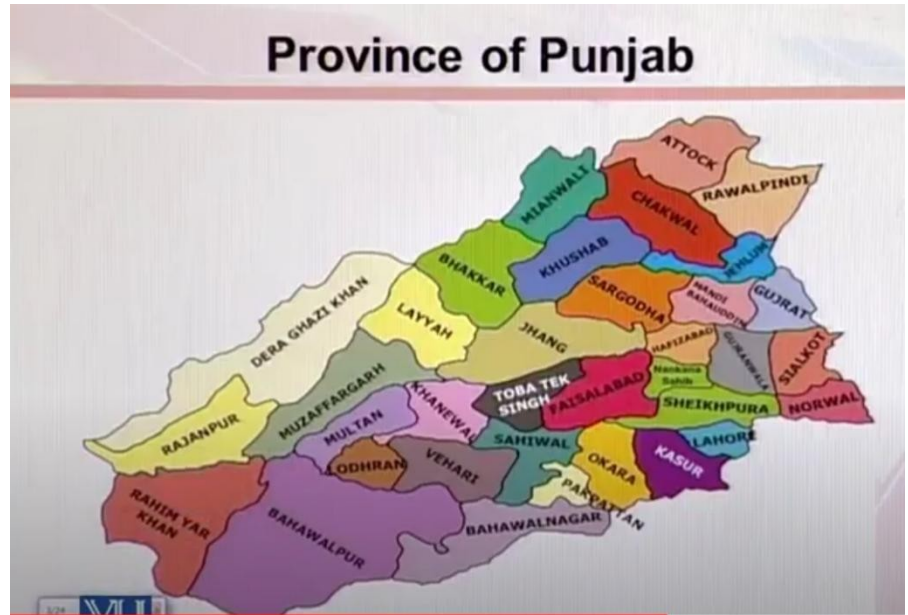
### **The Provincial legislature (After 18<sup>th</sup> Amendment)**

- As a unit of province, provincial government is vested with powers to legislate
- The four provinces have their respective provincial assemblies
- The assemblies comprise elected representatives
- **Punjab 38 districts**
  - **369 provincial assembly members (Members are directly Proportional of Population)**
- **Balochistan 31 districts**
  - **65 provincial assembly members**

## Provincial Assembly Punjab

- 295 general seats (Directly Elected)
- 66 women
- 08 minority
- ✚ **Profile**
- 72 MPAs are agriculturists
- 62 business persons
- 20 advocates
- 73 members are between the age of 45-50
- 51 between 51 and 60 years
- 42 between 31-40 years
- 12 between 71 and 80

[Click here to view PPTs](#)



## MGT513\_topic 043

### The Provincial legislature (After 18th

Amendment)

### Provincial Assembly Balochistan

- 51 general seats
- 11 reserved for women
- 03 for minority
- Representatives are from different tribes.

### Functions of Assembly

1. Legislation
  2. Overseeing government working
  3. Public money is spent judiciously and according to financial rules.
- Approves budget

[Click here to view PPTs](#)



## MGT513\_topic 051

### (Legislative)

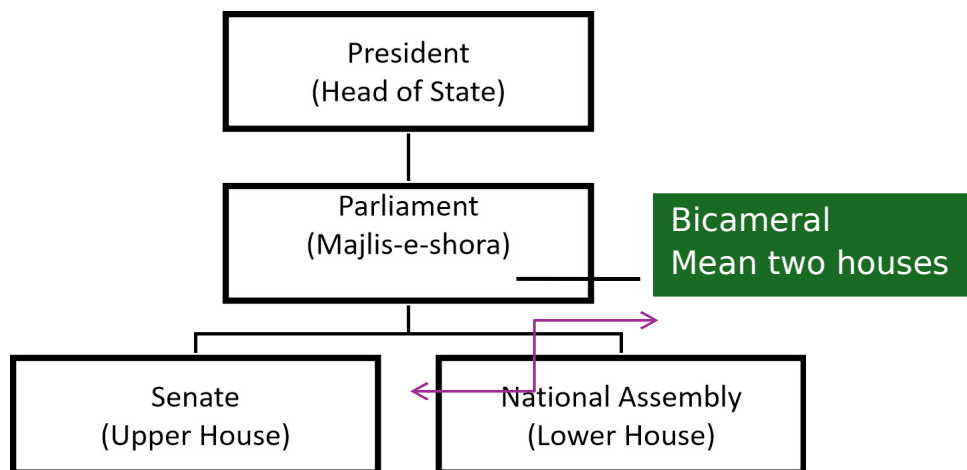
#### Legislative Branch (Elected rep.)

#### National Assembly

Total 342 Members;

- 272 General seats
- 60 for women
- 10 for non-Muslims
- General seats are filled by direct and free vote (Adult franchise)
- Function : Check and balance
- Period : 5 years

### Structure of Federal Government



## **Senate**

Total 100 Members

- 22 from each province (Provincial representation)
  - 8 from FATA
  - 4 from Federal Capital
  - Period: Elected for 6 years
  - 17 seats reserved for women
- Elected indirectly through the system of proportional representation
- Function: Cohesion and harmony b/w Provinces

[Click here to view PPTS](#)

## **MGT513\_topic 052**

### **Structure of Federal Government (Judiciary)**

#### **Judiciary**

- It is the legal arm of government
  - The Constitution provides for independence of Judiciary
  - Accordingly, the Courts, defend, protect and preserve the Constitution
- Judiciary consists of:
- **Supreme Court** : 17 Judges including chief Justice of Pakistan
  - **Islamabad High Court** : 5 Judges (2010)
  - **Federal Sharia court**
  - **Subordinate Judiciary** : At district Level

[Click here to view PPTs](#)

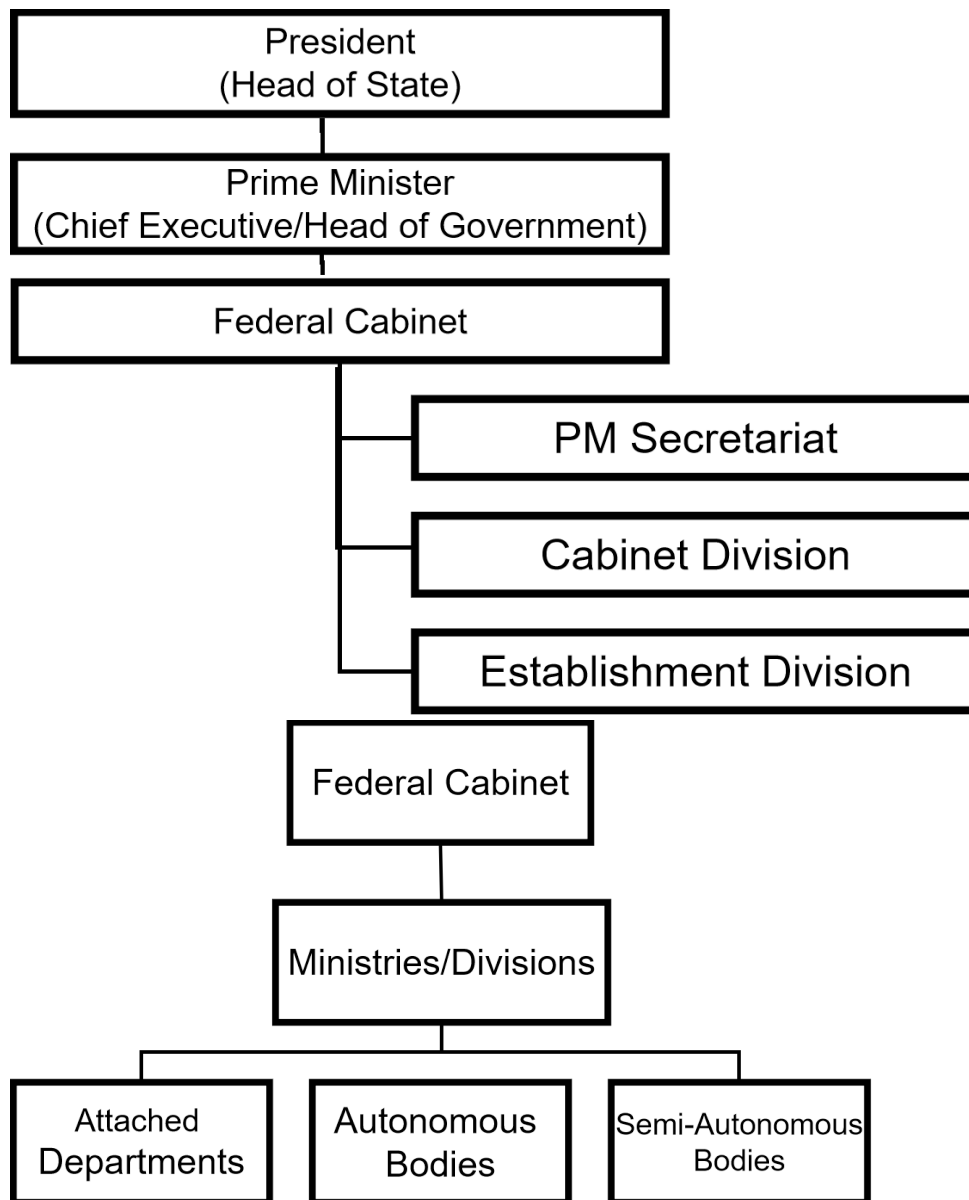
## **MGT513\_topic 053**

### **Structure of Federal Government (Executive)**

#### **Executive**

It is the administrative arm of government.

It is structured as:



[Click here to view PPTs](#)

## MGT513\_topic 054

### Number of Ministries

#### [List of Ministries of Pakistan 2020](#)

- In 2002, 41 ministries and 48 divisions
- **NCGR** (National Commission of Government Reform) in 2008, recommended 23 ministries and 37 divisions
- February 2011, ministries reduced to 23 by the PM
- There are 30 ministries as given in **ROB** (Rules of Business). It is on Prime Ministries to reduce or add ministries.

- Number of central government ministries averages 16 on a worldwide basis, with little variation among regions from an average of 10 in the small Pacific countries to 20 in the Middle East and North Africa.
- In Africa, the number of ministries ranges from a low of 10 in Botswana to 28 in Nigeria.
- from 7 to 35 in Asia,
- from 11 to 27 in Latin America, and
- from 6 to 16 in the Pacific.

[Click here to view PPTs](#)

## MGT513\_topic 055

### Rules of Business-1973:

Which define the function of ministries,

ministers

- Central/Federal Secretariat: For the proper functioning of the Federal Government there are ministries, divisions, attached departments, autonomous and semi-autonomous bodies.
- ✦ Ministry: is a **division or group of divisions** constituted into a ministry or it may comprise one or more divisions for the conduct of business of Federal Government in a specified sphere. Each ministry is headed by a Cabinet or Federal Minister and A Secretary is the administrative in charge of the ministry.

[Click here to view PPTs](#)

## MGT513\_topic 056

### Rules of Business-1973

- ✦ Division: It also performs functions like Ministry to formulate policies and to ensure their implementation. It is headed by a Minister for State and Secretary or Additional Secretary is administrative in charge.
- ✦ Subordinate Offices: Each **attached department has many subordinate offices**, which are known as “**field offices**”. They are **under the attached department** and perform specific duties. They are **responsible for the execution of all the filed activities of attached departments.** They are headed by an administrator or Director.
- ✦ Autonomous/Semi-Autonomous Bodies: Certain Ministries or Divisions have a number of autonomous, semi-autonomous bodies representing the trend of **decentralization** for arriving at speedy decisions.

[Click here to view PPTs](#)

## MGT513\_topic 057

### Rules of Business-1973

Rules of Business, 1973 (as amended up to 11th Sep, 2024).pdf

#### Allocation of Business 3(1) (Page NO : 34)

- The business of government is distributed according to **Schedule II, Rules of Business**.
- The Prime Minister can change the distribution of business or the constitution of business.

Example:

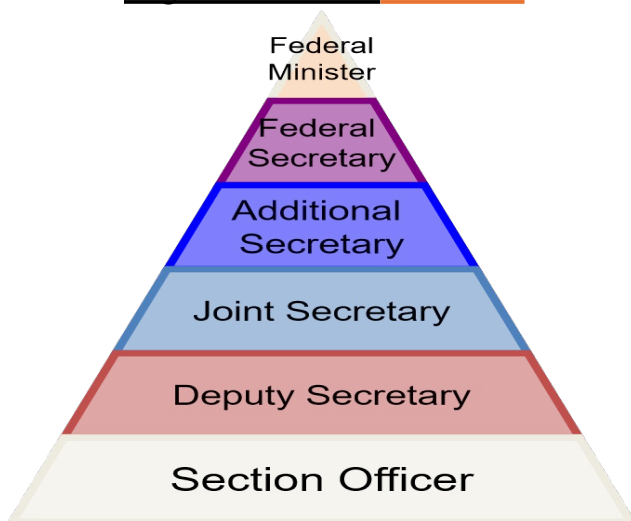
**Business of Cabinet Division** comprise, all secretarial work for cabinet, National Economic Council, and their committees, follow up and implementation of decisions of all bodies mentioned

[Click here to view PPTs](#)

## MGT513\_topic 058

### Rules of Business-1973 (Page NO: 8)

#### Organization of DIVISION



- Business of Government **Sec. 11**

The minister-in-charge will conduct the business of the division in the Assembly

- Conduct of business **Sec. 11 (a)**

Verbal orders given by functionary of the government should as a matter of routine reduce to writing and submitted to the issuing authority.

The section further states, if time permits seek confirmation of the order, before initiating action. However, if time is constrained, execute action and seek confirmation, submitting the report of

action

- Conduct of business **Sec. 12**

If any doubt or dispute arises or no previous practice or no precedent to the interpretation of these rules or the division to which the case pertains, the case shall be referred to the Cabinet Division, whose decision shall be final. The Cabinet Division shall obtain the orders of the Prime Minister where necessary

- Conduct of business **Sec. 13**

Additional instruction to the rules shall be issued by Cabinet Division, however, if special or general orders are required by the Division in terms of these rules it should be consulted by Cabinet Division

[Click here to view PPTs](#)

## MGT513\_topic 059

### Rules of Business-1973

Individual and collective responsibility: (Page NO: 8)

Sec: 6

The Cabinet shall be collectively responsible for the advice tendered to, or the executive orders issued in the name of the President whether by an individual or collectively.

[Click here to view PPTs](#)

## MGT513\_topic 060

### Rules of Business-1973

Minister-Secretary relation

- What are formal relations of minister-secretary?
- Policy direction should come from minister
- Secretary should implement
- This relation *could be cordial or confrontational*, but
- These could be not so cordial
- An order which is not lawful or not in the limit of reasonableness is not to be complied

Video clip 'yes prime minister' (1.38 minutes)

[Click here to view PPTs](#)

## MGT513\_topic 061

### Rules of Business-1973

Consultation among divisions (Page NO:9)

Sec8(1) when the subject concerns other division, like pollution control, the other divisions should be consulted.

The Division in charge shall be responsible for consulting the other Division concerned and no orders shall issue, nor shall the case be submitted to the Cabinet or the Prime Minister, until it has been considered by all the Divisions concerned, and their views obtained

In case, due to *urgency* it is not discussed, with the approval of PM it should be dispensed with concerned people.

[Click here to view PPTs](#)

## MGT513\_topic 062

### Rule of Business-1973-Critique

**Critique**

- The structure of government laid out in the Constitution of Pakistan
- Rules of business provide comprehensive set of conducting the business of government

- Despite such clear rules, why inefficiency and inadequate application of rule of law?
- Public administration is about rules?

[Click here to view PPTs](#)

### **MGT513\_topic 063**

#### *Duties of Prime Minister*

- The executive authority is exercised on behalf of the President, by the federal government, consisting of PM and federal ministers who shall act through PM- the chief executive of the federation
- The PM assigns ministries to ministers belonging to own party and coalition parties
- In this way he has responsibility of their efficient and effective functioning of every department of government.

[Click here to view PPTs](#)

### **MGT513\_topic 064**

#### *Duties of Minister*

- The ministers assist the PM in the formulation of policy
- They are responsible for the functioning of their respective ministries and division
- It is his duty to follow the Constitution
- Thus, the onus is on minister for any mishap or disaster

[Click here to view PPTs](#)

### **MGT513\_topic 065**

#### *Duties of Secretary*

- Civil Servants
- Assists minister-in-charge in formulation of policy
- Executes sanctioned policy
- **Submits proposals to the Cabinet** with approval of minister
- Keeps the Minister-in-charge informed
- Is **principal accounting officer** of his division, attached departments and subordinate offices
- Responsible for **observance of rules** and if any material deviation from rules will inform the minister
- The secretary organizes the division into Sections

- Example: Establishment Division  
Prime Minister is Minister-in charge  
*Civil servant BS.22 is secretary*  
7 Wings headed by joint secretary (BS 20)  
Each wing is having a number of sections

[Click here to view PPTs](#)

### **MGT513\_topic 066**

### Duties of Additional Secretary

- Additional Secretary is in BS 21 and can be in charge of division
- In that case he has all the responsibilities of secretary and directly submits the cases to the minister-in-charge

[Click here to view PPTs](#)

## **MGT513\_topic 068**

### Duties of Section Officer

- Is **BS 17 officer** (appointed through CSS)
- Shall dispose of all cases where there are clear precedents, and no question of deviation from such precedents is involved or
- which under the rules is competent to dispose of case in jurisdiction
- In case of doubt may seek verbal instructions from senior

### OTHER SUPPORT STAFF :

- Office assistant, steno typist, naib qasid, private secretaries, personal assistant

*(Manual : Secretariat Instructions)*

[Click here to view PPTs](#)

## **MGT513\_topic 069**

### **Movement of case or file**

- In practice, the **channel** of submission of case is **vertical**. The file **starts** from **section officer** and **moves to the top**, that is, **secretary**.
- If a file is read by all the officers, it sure can add value to the case
- The officers look up to seniors for the direction or senior's intent or desire
- Thus, would not give substantive views on the case

[Click here to view PPTs](#)

## **MGT513\_topic 070**

### **Distribution of Main Responsibilities**

- 1973 Constitution provided Federal legislative list (FLL) I
- Concurrent ( Both Federal and Provincial)
- Exclusive provincial list (residuary)
- Federal legislative list II
- The **FLL-I contained 59 subjects**, such as defense, security, external affairs, communications, currency, foreign exchange, public debt, federal services, to name few
- The **FLL-II (8 subjects)** contained subjects like railways, mineral oil and natural gas, development of industries under federal law, establishments under the control of federal government, **FLL-II comes under CCI (Council of Common Interest)**
- The **CLL contained (47 subjects)** such as criminal law, criminal and civil procedure, evidence, marriage, wills, bankruptcy, arbitration, contracts, transfer of property,

[Click here to view PPTs](#)

## **MGT513\_topic 071**

### **Distribution of Main Responsibilities (18th Amendment)**

#### **18th Amendment**

- On **20 April 2010**, 18th Amendment to the Constitution, amending 102 articles and 17 ministers were devolved was done.
- The **concurrent list** (with 47 subjects) **was abolished** and the **provinces were given additional responsibilities of 17 federal ministries**.
- Subjects like Lotteries, duties in respect of succession to property and estate duty in respect of property were deleted from FLL-I and given to provinces
- **Some subjects from FLL I and concurrent list were moved to FLL II**, like major ports, national planning and national economic coordination, Census and extension of powers of police force to other provinces and Electricity and legal, medical and other professions
- The effect of these changes was reduction in federal government responsibilities and increased list of subjects for legislation by Provincial Assemblies

[Click here to view PPTs](#)

## **MGT513\_topic 072**

### **18th Amendment**

- **Increase in FLL II meant enhanced list of areas for CCI**, providing a forum for Provincial Governments to voice their opinion and
- Greater responsibility to the Council in formulation and regulation of policies in such areas.
- Example : Net hydal Power Profit, Dams Construction and other matters bring before CCI

[Click here to view PPTs](#)

## **MGT513\_topic 073**

### **Distribution of Main Responsibilities**

#### **The Devolved Subjects**

- I) Agriculture was devolved but National Food security and Research Division was created in lieu.
  - Devolved – 09 functions and 01 department
  - Wound up – 02 functions and 03 departments
  - Retained – 27 functions and 08 departments
- II) Health was devolved as follows:
  - Devolved – 03 functions and 4 departments (and **vertical programs** : Programs directly provided and funded by federal Gov. to Provinces.)
  - Wound up or merged – 03 departments
  - Retained – 12 functions and 15 departments
- III) Education was devolved

- It has been a provincial subject but 1973 Constitution made it part of concurrent list.
- Curriculum Policy should not be devolved Meanwhile retaining each Province special requirement.

[Click here to view PPTs](#)

## MGT513\_topic 074

### Provincial resources

- Under 18th Amendment **Sales tax on services was devolved** to provincial governments
- **Capital gains tax** also came to provinces.
- Despite that the Provincial Governments are dependent on federal transfers
- The bigger provinces **created Revenue Authorities** (Sindh and Punjab) for collection of provincial taxes
- In the beginning there was *skepticism* about provincial *human resource capacity* to undertake added responsibilities, with the passage of time however, this view is dispelled

[Click here to view PPTs](#)

## MGT513\_topic 075

### Responsibilities of the Government

#### National Purpose

“THE DESIRE OF A PEOPLE TO ORDER THEIR LIVES ACCORDING TO THEIR VALUES AND BELIEFS”

The purpose of the state was not to extend its dominion or enrich its people, but to **widen knowledge, promote virtue and secure justice for all.**

*National purpose* of a nation founded on *six elements*:

1. Historical perspective
2. Socio-political environment
3. Beliefs & values
4. Religious leaning
5. National power potential (Natural and Human resource, Military)
6. Vision of the *founding father* of nation

[Click here to view PPTs](#)

## MGT513\_topic 076

### Responsibilities of the Government

#### National Interest

National interest is:

“The general and continuing end for which a state acts”

Raison d'Etat (*reason of state*) Country's goals and ambitions whether, economic, military or cultural

### **Aims / Objectives**

- National aims/objectives : are future state of affair that is considered desirable by the government, for the achievement of which it is willing to spend time, effort and resources. In a democratic state, these are based on national interests.
- National policy is designed to achieve these aims/objectives, it is these aims/objectives that are:
  - Promoted by the national Govt.
  - Shared by an important segment of national population
  - Having considerable effect upon the people of country and other nations

[Click here to view PPTs](#)

### **MGT513\_topic 086**

#### *Executive Committee of National Economic Council (ECNEC)*

- ECNEC is *not a constitutional body*
- It is the *executive agency* for *implementation of the policies decided by NEC*
- It is the highest level where Individual projects are approved.

The composition of ECNEC along with their respective members and functions are:

- Minister, Finance (Chairman)
- Ministers of the concerned Ministries and provincial governors /chief ministers are all the members of ECNEC

#### *ECNEC Functions:*

- Development Schemes costing more than Rs. 500 million and above are submitted to ECNEC for its consideration/approval
- To supervise the implementation of the economic policies laid down by the Cabinet and the National Economic Council.
- To allow moderate changes in the plan and sectoral re-adjustments within the over-all plan allocation.
- Reports asked for by the Committee in pursuance of its earlier decisions.
- Any other matter referred to the Committee by the Prime Minister, the National Economic Council, the CCI or the Cabinet or raised by a member in the committee with the permission of the Chairman

- To consider and approve yearly target of foreign aid, expansion of trade, export of manpower as well as to review the progress of the yearly targets.
- Meeting of ECNEC is held as and when required
- Planning Division provides secretarial services to the ECNEC.

[Click here to view PPTs](#)

## **MGT513\_topic 087**

### *Separation of power :*

### **Presidential form**

"In Spirit of law" book written by Montes in 18th century gives doctrine of  
*Sepration of power French Word : Trias politica*

- Separation of powers is more associated with the presidential system of government.
- Check and Balance System.
- Each branch is elected or selected independently of the other branches (e.g., USA)
- In separation of powers, it is not the national legislature which selects the executive.
- The executive branch includes the office of the president and his cabinet, who are not legislators
- The legislative branch comprise of House of Representatives (lower house) and Senate (upper house)
- Together these are Congress
- Each branch of government has unique powers and is also able to influence the actions of another branch.
- The executive branch has the power of veto over the legislative branch.
- In a presidential system the leader of the executive branch is head of state and head of government.

[Click here to view PPTs](#)

## **MGT513\_topic 088**

### *Separation of power :*

## Parliamentary form

- There is fusion of power in parliamentary system
- The elected legislature is supreme
- Other branches are subservient
- UK has parliamentary form of government
- when the term of the legislature ends the tenure of the executive selected by that legislature also ends;
- The prime minister, a member of the legislature, heads the government, while the role of head of state is assumed by president or monarch as in UK. But in Britain and Canada the head of the state is Queen.
- Pakistan, Bangladesh, Burma, India, Canada and many more carry Parliamentary form from British influence.

[Click here to view PPTs](#)

### **MGT513\_topic 089**

#### **Separation of power in Pakistan context**

- Pakistan an executive dominated state
- The trend linked to Mughal and British rule in subcontinent
- The three powers were combined in one person—no constitution
- Historical context of Pakistan government needs to be seen first
- Government of India Act 1858 can be used to compare and analyze the things and *then*
- The Government of India Council Act 1861
- The Minto Morley reforms of 1909
- The Government of India Act 1919 and
- *Finally* the Government of India Act 1935
- Governor General (Viceroy) enjoyed final political authority and the widest discretionary powers
- Pakistan emerged as Parliamentary form of government.
- Governor General and then president enjoyed substantial powers and considerable authority.
- He could make all important appointments

- Successive martial laws, secession of eastern wing

[Click here to view PPTs](#)

## **MGT513\_topic 090**

### *General Characteristics of parliamentary government :*

#### **1. Fusion of power :**

- Members of the Legislature are also members of the Executive (Cabinet)
- The Prime Minister chooses ministers for cabinet among legislature
- The cabinet ministers are responsible and answerable to Parliament
- As member of Legislature, they are responsible for making law in the country
- As member of Executive, they are responsible for enforcing law, implementing policies and also providing services to the people.

[Click here to view PPTs](#)

## **MGT513\_topic 091**

### *General Characteristics of parliamentary government :*

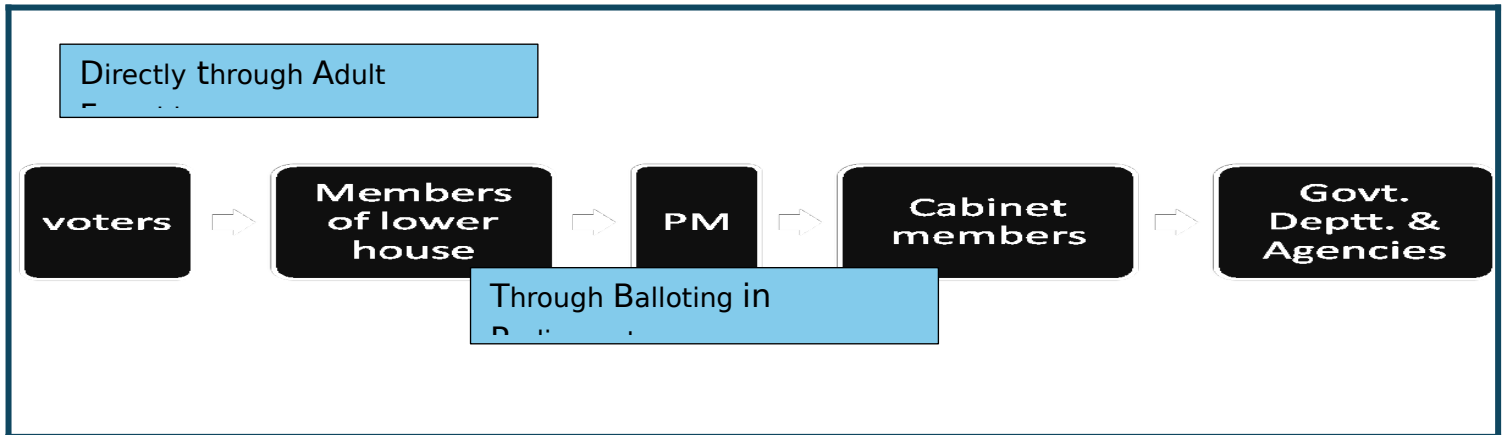
#### **2. Dual executive system**

- Head of state and head of government are Different.
- The head of state is President, King or Queen
- Head of state is nominal executive
- President role is nominal and customary as he does not exercise Real power to govern the country
- The head of government is the Real executive who exercises real power

#### **3. Dominant party system:**

- Who wins majority seats in the parliament during general elections forms the government
- The voters elect the members of Legislature to represent them in the parliament.

- The leader of the winning party chooses his own cabinet members who were elected.
- The chief executive (Prime Minister) is not directly elected. (Mean Indirect Election)
- People only vote for legislators and then legislators elect Chief Executive from among themselves.
- Here, the process is shown in the form of chain:



### PROs and CONs of Parliamentary Government

- Advantages : This form of government has slowly devolved power from Monarch to viceroy, parliament
- The Prime Minister can be replaced without election with the help of Vote of No Confidence.
- Have been able to support Federal structures
- Disadvantages: Poor separation of powers
- Poor check and balances
- Good become autocratic

[Click here to view PPTs](#)

**MGT513\_topic 092**

### **The Election Process**

### **Election Commission of Pakistan (ECP)**

- Election Commission of Pakistan is a constitutional body

- Autonomously, Independent Created in 1956
- Under article 218 of the constitution of the Islamic Republic of Pakistan, it is responsible for holding free and fair elections in the country
- President of Pakistan appoints the chief election commissioner and four members (From four Provinces) of election commission of Pakistan.
- The Prime Minister and leader of the opposition in the national assembly recommend three names for appointment of Chief Election Commissioner and for each member, to a parliamentary committee for hearing and confirmation of any one person against each post. (This Takes a Year after election 2013 and ends at 2014)
- The commission transacts its business by holding meetings
- All members of the election commission have equal status and say in the decisions of the commission
- Election commission is responsible for holding free and fair election and also trustworthy election
- Also responsible for preparing electoral rolls for election to national assembly and provincial assemblies and to revise the rolls
- It organizes elections for Senate or any seat fall vacant or bye election
- It also appoints election tribunals

[Click here to view PPTs](#)

## **MGT513\_topic 093**

### **The Election Process**

#### Organization Structure of Election Commission of Pakistan

- Head Office in Islamabad.
- Heads Belong to Judiciary.
- Leadership of the election commission of Pakistan rests with the chief election commissioner,
- The Secretary Election Commission manages human and material resources
- Formulates policies and applies them in order to create conditions where the ECP is able to effectively perform its functions
- The Secretary has the support of various joint secretaries. In the hierarchical set up, the Joint Secretaries are assisted by a number of Deputy Secretaries and Section Officers

- Election Commission of Pakistan has more than 1800 staff members across the country.
- There are Provincial, Regional and District Election Commissions. District Election Commission Coordinate with other required Branches of Government.

### Election Commission of Pakistan and other organizations

- The National Database and Registration Authority, Pakistan (NADRA), is an independent and autonomous agency under Ministry of Interior, Government of Pakistan
- Regulates government databases and statistically manages the sensitive registration database of all the national citizens of Pakistan
- Is responsible for issuing the computerized National identity cards, maintaining their sensitive information, and securing national identities of the citizens of Pakistan from being stolen

[Click here to view PPTs](#)

### **MGT513\_topic 094**

The election process

#### Delimitation

HALQA bandi حلقوں کی حد بندی

- The **Exercise of fixing the territorial limits of constituencies** is called delimitation
- It is governed by the Delimitation of Constituencies Act, 1974
- Section 10-A of the Delimitation of Constituencies Act, 1974 empowers the ECP to make amendments, alterations or modifications in the final list of constituencies “as it thinks necessary”
- Delimitation of constituencies is a vital component defining representativeness of and, to a certain extent, how fair elections will be.
- Election Commission of Pakistan is responsible for fixing the territorial limits of each of the 272 National and 577 Provincial Assemblies constituencies of the four provinces.
- Population census becomes available or if and when the number of seats allocated to each province is changed.
- Also, paragraph 21 of General Comment 25 (which is the authoritative interpretation of the ICCPR {**International Covenant of Civil and Political Rights**}) states that the vote of one elector should be equal to the vote of another;
- The drawing of electoral boundaries and the method of allocating votes should not distort the distribution of voters or discriminate against any group.

[Click here to view PPTs](#)

## **MGT513\_topic 095**

### **The election process**

#### **Law of Delimitation**

All the constituencies for general seats shall, as far as practicable, be delimited having regard to the distribution of population geographically and keeping in view:

- Compact areas, existing boundaries of Administrative units, facilities of communication and public convenience

**And**

- other cognate factors to ensure homogeneity in the creation of constituencies

[Click here to view PPTs](#)

## **MGT513\_topic 096**

### **The election process**

#### **Voters**

- Article 51 (2)
- A person, who is a citizen of Pakistan,
- Not less than 18 years of age on the 1st day of January of the year in which the rolls are prepared or revised
- Voter's name must appear on the electoral rolls
- Is not declared by a competent court to be of unsound mind and is deemed to be a resident of an electoral area,
- Can get himself enrolled as a voter in that electoral area
- Only citizens registered on the electoral rolls are eligible to cast their vote.

#### **Voters list**

- Transparent voter list is a dream because of Population Census.
- A lot of manipulation occurs
- Computerized electoral rolls project in 2007, with Investment of Multinational Organization in which USAID is in Front
- International assistance was involved
- NADRA was not involved ,only ECP and International Org. Were involved.

- Election Commission of Pakistan went for door-to-door enumeration in 2006 instead of using NADRA database
  - **Computerized National Identity Card (CNIC)** to be used. Old cards would also be used. [Election process](#)
  - Data entry done
  - Voters list announced
  - Number of voters declined
  - Drop in number due to lack of CNIC
  - According to electoral rules 1974, the list to be updated every year
  - A fresh look in 2009
  - NADRA engaged to authenticate and remove bogus list
- [Click here to view PPTs](#)

## MGT513\_topic 097

### The election process

### Qualifications of membership of Majlis-e-Shoora (Parliament)

#### Article 62

- A person shall not be qualified to be elected or **chosen as a member of Majlis-e-Shoora** **unless**
  - a. He is a citizen of Pakistan
  - b. He is, **in the case of the National Assembly**, not less than 25 years of age and enrolled as a voter in any electoral roll in--
    - Any part of Pakistan, for election to a general seat or a seat reserved for non-Muslims; and
    - Any area in a Province from which he/she seeks membership for election to a seat for women
  - c. He/she is **in the case of Senate**, not less than thirty years of age and is enrolled as a voter in any area in a Province or,
  - d. Is of good character and is not commonly known as one who violates Islamic Injunctions;
  - e. He has adequate knowledge of Islamic teachings and practices obligatory duties prescribed by Islam as well as abstains from major sins;
  - f. He is sagacious, righteous, non-profligate, honest and ameen, there being no declaration to the contrary by a Court of law;

- g. He has not, after the establishment of Pakistan, worked against the integrity of the country or opposed the ideology of Pakistan

The disqualification specified in paragraphs (d) and (e) shall not apply to a person who is a non-Muslim; but such a person shall have good moral reputation.

[view PPTs](#)

[Click here to](#)

## MGT513\_topic 098

### The election process

### Disqualifications for membership of Majlis-e-Shoora (Parliament)

#### Article 63

- A person shall be disqualified from being elected or chosen as, and from being, a member of the Majlis-e-Shoora (Parliament), if—
  - a. He is of unsound mind and has been so declared by a competent court; or
  - b. He is unable to pay debt; or He ceases to be a citizen of Pakistan, or acquires the citizenship of a foreign State; or
  - c. He holds an office of profit in the service of Pakistan other than an office declared by law not to disqualify its holder; or
  - d. He is in the service of any statutory body or anybody which is owned or controlled by the Government or
  - e. in which the Government has a controlling share or interest i.e. PIA
  - f. Being a citizen of Pakistan by virtue of Section 14-B of the Pakistan Citizenship Act, 1951 (II of 1951), he is for the time being disqualified under any law in force in AJ&K from being elected as a member of the Legislative Assembly of AJ&K; or
  - g. He has been convicted by a Court of competent jurisdiction for propagating any opinion, Or
  - h. acting in any manner, prejudicial to the ideology of Pakistan, or the sovereignty, integrity or security of Pakistan,
  - i. or the integrity or the independence of the judiciary of Pakistan, or which defames or brings into ridicule
  - j. The judiciary or the armed forces of Pakistan, unless a period of five years has elapsed since his release; or
  - k. He has been. On conviction for any offence involving moral turpitude, sentenced to imprisonment

- l. he has been in the service of Pakistan or of any statutory body or any body which is owned or controlled by the Govt. or
- m. in which the Govt. has a controlling share or interest, unless a period of two years has elapsed since he ceased to be in such service; or
- n. he, whether by himself or by any person or body of persons in trust for him or for his benefit or on his account or
- o. as a member of a Hindu undivided family, has any share or interest in a contract,
- p. not being a contract between a cooperative society and Govt., for the supply of goods to, or for the execution
- q. of any contract or for the performance of any service undertaken by, Govt.

[Click here to view PPTs](#)

## **MGT513\_topic 099**

### **The Election Process**

#### **Article 63-A**

(1) If a member of a Parliamentary Party composed of a single political party in a House--

- resigns from membership of his political party or joins another Parliamentary Party; or
- votes or abstains from voting in the House contrary to any direction issued by the Parliamentary Party to which he belongs, in relation to--
  - election of the PM or the CM; or
  - a vote of confidence or a vote of no-confidence; or
  - a Money Bill or a Constitution (Amendment) Bill;

#### **Scrutiny of record of candidate**

- As soon as paper are submitted, these are scrutinized by ECP
- Articles 62, 63 and 63 (A)
- Data from State Bank of Pakistan, FBR, NADRA
- The scrutiny to be completed in 14 days

[Click here to view PPTs](#)

## **MGT513\_topic 100**

### **The election process**

## Electronic voting

- Electronic voting (also known as e-voting) is voting using electronic system to aid casting and counting votes.
- Electronic voting technology can include punch cards, optical scan voting systems and specialized voting kiosks (including self-contained **direct recording e-voting** systems,
- or **DRE**). It can also involve transmission of ballots and votes via telephones, private computer networks, or the internet.
- In general, **two main types of e-Voting** can be identified:
- (1) **e-voting** which is physically supervised by representatives of governmental or independent electoral authorities (e.g. electronic voting machines located at polling stations);
- (2) **remote e-Voting** where voting is performed within the voter's sole influence, and is not physically supervised by representatives of governmental authorities (e.g. voting from one's personal computer, mobile phone, television via the internet (also called **i-voting**).

## Casting vote

- It is individuals' responsibility
- Should not be influenced
- Use ones ID card

## Vote counting

- There exist various methods through which the ballots cast at an election may be counted, prior to applying a voting system to obtain one or more winners.
- Manual counting
- Electromechanical and optical scan counting
- Direct-recording voting (mechanical counting)
- Direct recording electronic counting

## The end product lack of trust

- Election results remain controversial
- Why?

Polling Process (See Lecture.)

## MGT513\_topic 101

### Legislative process I

#### Legislator's duty

- Assess a Bill in the Public Interest
- Participate in Committees: (There are specialized Committees)
- Utilize Research Support
- Consistently Invite Public Input
- When the National Assembly is summoned, the Secretary issues a notification published in Gazette, stating the starting date, time and place.
- It is sent to each Member.
- Every year the government provides calendar of session to speaker
- The President may call the session of parliament whenever on dates other than given in calendar

[Click here to view PPTs](#)

## MGT513\_topic 102

### Legislative process I

#### Types of business (NA)

- **Government Bills:** Introduced by a minister and passed by simple majority
- **Private Bills:** include bills, resolutions, amendments and other motions introduced or initiated by private Members.
- **Constitution Amendment Bill:** requires two-thirds majority of both Houses to pass it and also that of other Houses (in some cases). It can originate in either House.
- **Money Bill:** A government bill dealing with matters of revenues and expenditures, and it originates in the National Assembly. It is sent to the Senate within seven days.

[Click here to view PPTs](#)

## MGT513\_topic 103

### Legislative process I

#### From a Bill to Act (13 steps)

- 1.** Introducing a Bill: 3 copies, objectives, and reasons. A 10-day written notice to the secretary to move a bill. **Example**: Pakistan Protection Bill 2014.
- 2.** Order of The Day: The private members' bill is moved on Tuesday and in the Orders of the day. Copies circulated to all Members for collecting Comments.
- 3.** Bills Repugnant to Islam: Such a bill is referred to Council of Islamic Ideology for advice.
- 4.** 1st Reading - Discussion on Principles of Bill:
- 5.** Motion of Consideration: by Member in Charge.

[Click here to view PPTs](#)

## MGT513\_topic 104

### Legislative process I

#### From a Bill to Act (13 steps)

- 6.** Reference to Committees: All bills except Money Bill stand referred to the concerned Standing Committee or Select Committee for recommendations.
- 7.** Committee's Recommendation: May suggest minor changes in the bill, accept it as it or major amendments
- 8.** 2nd Reading Amendments: 1 day notice to amendment, from the day a bill is considered
- 9.** 3rd Reading - Debate
- 10.** Vote: After debate, the Speaker puts the motion for the decision of the House.
- 11.** Transmission of Bills to Senate: Once a bill (other than Money Bill) is passed by the House in which it originated, it is sent to the other House.
- 12.** Authentication and Submission of Bills for Assent: When a bill is passed by the National Assembly, without amendment, an authenticated copy signed by Speaker is transmitted to the President.

**13.** Promulgation: When the President assents a bill, the secretary immediately ensure its publication in the Gazette, declared as an Act of Majlis-e-Shoora

[Click here to view PPTs](#)

## **MGT513\_topic 105**

### **Legislative process I**

**Types of Committee** Committees are brain in the parliamentary form of Government.

- **Standing Committees** in the National Assembly equal the number of Ministries.
- The **Public Accounts Committee** : Oversee the Budget passed by government, allocations to diff. Ministries, and rules of Expenditure made by auditor general of Pakistan to ensure that they are used for intended purposes.
- **Functional Committees** are those that deal with the business of the House (Finance, house and library, rules etc..)
- **Select Committees** Created on a motion passed by the Assembly to review and examine critically new and amend existing legislative proposals.
- A **Mediation Committee**: When a bill is rejected or not passed within 90 days by the second House of the Parliament

### **Committees' membership:**

- Elected by respective house from both opposition and ruling party. Minister is ex-officio member and remains accountable to committee
- Chair is elected from amongst the members. Minister-in-charge not chair.
- There is Council of Committee Chairs convened by Speakers
- Term of Committee given by committees own members.
- Sittings of committees
- Duration : 5 year equal TO notional assembly . Has Many reports to consider for information.

[Click here to view PPTs](#)

## MGT513\_topic 106

### Legislative process II

#### Committee's Effectiveness

- Assist in functioning of parliament (Parliament one function is to oversight executive)
- Committees are “mini legislatures”, can be empowered for an effective and strong Parliament.
- Can supervise ministries and divisions
- Parliamentarian generally do not understand the working and importance of committee
- Low Attendance, No Preparation for issue, No interest are some reasons of ineffectiveness.

#### How many times Parliament meets?

- There shall be at least three sessions of the National Assembly every year, and not less than 120 days between two sessions
- Provided that the National Assembly shall meet for not less than one hundred and thirty working days in each year. Depends on nature of issue.

[Click here to view PPTs](#)

## MGT513\_topic 107

### Legislative process II

#### What should parliament discuss?

- Federal Legislative list I and II.
- “Parliament is the best platform in democracy and **current** political situation should be discussed in Parliament.
- No discussion shall take place in Parliament with respect to the conduct of any Judge of the Supreme Court or of a High Court in the discharge of his duties.
- The states’ main responsibilities in light of national purpose and interest
- Current security situation

- Security of life, honour, property of people
- Social and economic well-being
- Agriculture, climate change

[Click here to view PPTs](#)

## **MGT513\_topic 108**

### **Legislative process II**

#### **How much debate on bill/Act etc..?**

- Should adhere to the 13 steps.
- Depends on the magnitude of challenge that confronts the country.
- Address the root cause of challenge.
- This could require more time than the historical longest session ( That was of 10 days)
- Should debate thoroughly. (Every Member should contribute)
- Supported by research. National Assembly Library should make effective.
- Institutional mechanism to provide support.
- It would require preparation by legislators.

[Click here to view PPTs](#)

## **MGT513\_topic 109**

### **Legislative process II**

#### **Attendance of the leader of the house and members**

- A moral obligation
- From 2013-14 long absence of leader of house and leaders of main parties
- Seven days attendance of the leader of the house in first year (2013-2014)
- The leader of the house and leaders of major political parties attended the longest ever session of parliament (10 consecutive days) in 2014

[Click here to view PPTs](#)

## MGT513\_topic 110

### Legislative process II

#### Examples of other countries (Bangladesh)

Bangladesh **unicameral parliament** (Has one House)

**Study** of **LEADERSHIP CHARACTERISTICS OF LEGISLATORS**: The study examines **relationship between** personal traits of legislators and legislative performance

**Personal characteristics** included:

1. legislative experience;
2. gender;
3. education;
4. dynastic background;
5. age;
6. criminal profile and
7. professional affiliation

**Performance in parliament** was studied with the variables:

- a. attendance in the parliament;
- b. budget speech participation;
- c. attendance in standing committee meetings. کمیٹی قائمہ

#### **Findings:**

- 54% were businessmen in 9<sup>th</sup> and 10<sup>th</sup> parliament
- 54% and 40% MPs in 9<sup>th</sup> and 10<sup>th</sup> parliament had legal charge (shows quality of electoral scrutiny by Election Commission)
- Businessmen with corruption charges are in majority

- That the dominant political parties accommodate individuals with undesirable track records.

On the side of legislative performance the findings were:

- Strong negative association between legislative experience and attendance
- Businessmen and legislators with corruption charges on average have lower levels of attendance.
- Educated legislators' legislative performance in terms of attendance was low
- Political parties do not influence parliamentarians attendance in standing committee meetings
- The opposition parties' attendance and legislative participation is low
- Therefore, the political parties lack discipline in their rank and file leading to under performance
- **Source:** BRAC, The State of Governance in Bangladesh Report 2013"

[Click here to view PPTs](#)